

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

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Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

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Date: August 14, 2026

1	Aldon vs. Rivian Automotive, LLC 2026-01542535	Motion to Compel Arbitration Defendant Rivian Automotive, LLC's Motion to Compel Arbitration is GRANTED. Rivian moves to compel arbitration pursuant to the Federal Arbitration Act ("FAA"), 9 U.S.C. §§ 1-16, and Code of Civil Procedure section 1281 et seq.
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		The FAA “applies where there is ‘a contract evidencing a transaction involving commerce.’” (Allied-Bruce Terminix Companies, Inc. v. Dobson (1995) 513 U.S. 265, 277 [quoting 9 USC § 2] [emphasis in original].) A court’s role in considering a petition to compel arbitration under the FAA is limited to “determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms.” (Chiron Corp. v. Ortho Diagnostic Sys. Inc. (9th Cir. 2000) 207 F.3d 1126, 1130.) “In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Ibid.) Existence of Arbitration Agreements Under Code of Civ. Proc. §1281.2, the first thing the Court must decide is whether there was an agreement to arbitrate, a meeting of the minds. (Mitri v. Arnel Management Co. (2007) 157 Cal.App.4th 1164, 1169.) This analysis is no different under the Federal Arbitration Act (“FAA”) – there must be an agreement in writing to submit a controversy to arbitration. (9 U.S.C.A. § 2.) “In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to
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	the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and "[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence." (Garcia v. Stoneledge Furniture LLC (2024) 102 Cal.App.5th 41, 51 [cleaned-up].) Here, on June 24, 2025, Plaintiffs leased a 2025 Rivian R12. To lease the Subject Vehicle, Plaintiffs executed the Rivian Motor Vehicle Agreement ("RMVA"), which contains an Arbitration Agreement. (Cleveland Decl., ¶ 3; Exh. B.) The Arbitration Agreement in Section 16 provides that it governs all disputes between "you and Rivian" and "You and Rivian agree to resolve all Disputes by binding arbitration." (Ibid.) The RMVA is between Plaintiffs and Rivian, LLC. Defendant Rivian Automotive, Inc., Rivian and VW Group Technology, LLC, and Rivian Automotive, LLC are express third party beneficiaries under the RMVA, and are entitled to enforce the provisions of the agreement. (Ibid.) The RMVA also contained a hyperlink to the Warranty Agreement and incorporated that agreement by reference. The Warranty Agreement provides that the Arbitration Agreement set forth in the RMVA applies to any dispute between Plaintiffs and Rivian. (Cleveland Decl., ¶ 5, Exh. C.) Rivian has sufficiently shown the RMVA contains an agreement to arbitrate. Plaintiffs appear to challenge the enforceability of the arbitration agreement in the Warranty on the ground that the doctrine of equitable estoppel does not apply. But Rivian is a named third party beneficiary under the RMVA and entitled to enforce the agreement. Therefore, the motion is not dependent upon a finding that the Warranty arbitration agreement is also enforceable.
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		Moreover, Plaintiffs do not dispute the validity of the Arbitration Agreement in the RMVA or that their claims are covered by the Arbitration Agreement. Rather, they contend the Arbitration Agreement is unconscionable and unenforceable. Rivian, however, argues that the arbitrator must determine arbitrability. The Arbitration Agreement contains a delegation clause which requires that any question regarding the validity, interpretation, construction, performance and enforcement be determined by the arbitrator. Delegation Clause "Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement. They 'can agree to arbitrate almost any dispute—even a dispute over whether the underlying dispute is subject to arbitration.'...There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability." (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 241–42 (cleaned-up).) In Tiri, the court found that the following delegation clause was clear and unmistakable: "The Arbitrator, and not any federal, state, or local court or agency, shall have the exclusive authority to resolve any dispute relating to the interpretation, applicability, enforceability, or formation of this Agreement, including, but not limited to, any claim that all or any part of this Agreement is void or voidable." (Id. at 237, 242.) The court found that the "language indicates an intent to delegate all issues to an arbitrator, including issues of enforceability. . ." (Id. at 242.) The delegation clause in the Arbitration Agreement at issue here is identical to the
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	delegation clause in Tiri. Specifically, the delegation clause which appears in the "Arbitrator's Powers" section of the Arbitration Agreement provides: "The arbitrator, and not any federal, state, or local court or agency, shall have the exclusive authority to resolve any Dispute relating to the interpretation, applicability, enforceability, or formation of this Agreement, including, but not limited to, any claim that all or any part of this Agreement is void or voidable." (Cleveland Decl., Exh. B.) The delegation clause clearly delegates the authority to the arbitrator to determine enforceability or formation of the agreement to arbitrate. Under the second prerequisite, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability. Plaintiff argues the delegation clause is unconscionable because it appears in the same pre-printed, non-negotiable RMVA that Plaintiff had no meaningful opportunity to negotiate. Unconscionability Procedural and substantive unconscionability "must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (Armendariz v. Foundation Health Psychcare Servs., Inc. (2000) 24 Cal. 4th 83, 114, 6 P.3d 669, 690.) However, they need not be present in the same degree. (Ibid.) A sliding scale approach is used and the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required. (Ibid.) "The party resisting arbitration bears the burden of proving unconscionability." (Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC (2012) 55 Cal. 4th 223, 247.)
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		a. Procedural Unconscionability "Procedural unconscionability focuses on the elements of oppression and surprise." (Serafin v. Balco Properties Ltd., LLC (2015) 235 Cal. App. 4th 165, 177.) "Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice. Surprise involves the extent to which the terms of the bargain are hidden in a prolix printed form drafted by a party in a superior bargaining position." (Ibid.) "[A] finding of procedural unconscionability does not mean that a contract will not be enforced, but rather that courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided." (Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1244.) In Sanchez v. Valencia Holding, Co., LLC (2015) 61 Cal.4th 899, the high court found that an automobile sales contract, as a contract of adhesion, was to some degree procedurally unconscionable, even if the buyer was able to negotiate the price for the vehicle and did not attempt to negotiate an arbitration provision alleged to be unconscionable. (Id. at 750-751.) It also stated, "a finding of procedural unconscionability does not mean that a contract will not be enforced, but rather that courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one sided." (Id. at 751.) As in Sanchez, the RMVA has some degree of procedurally unconscionability because it was non-negotiable. b. Substantive Unconscionability Plaintiffs argue that various provisions of the arbitration agreement are substantively unconscionable, but their arguments are not specific to the delegation clause, as required under Tiri and Rent-A-Center. (Tiri, supra, 226 Cal.App.4th at 244, citing Rent-A-Center, West, Inc. v. Jackson (2010) 561 U.S. 63, 73.)
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		Here, the delegation clause is not overly harsh, and does not sanction one-sided results. “An arbitration agreement imposed in an adhesive context lacks basic fairness and mutuality if it requires one contracting party, but not the other, to arbitrate all claims arising out of the same transaction or occurrence or service of transaction or occurrences.” (Id. at 246-247.) The delegation clause in this case does not lack mutuality because both Rivian and Plaintiff are bound by it equally. The arbitration agreement provides that “You and we understand that we are both waiving our rights to go to court (other than small claims court, as provided below), to prevent our claims to a jury and to have claims resolved by a jury trial...” (emphasis added.) As held in Tiri, although the delegation clause is a contract of adhesion and procedurally unconscionable, it is nonetheless valid and enforceable because it is not substantively unconscionable. Accordingly, the Motion is GRANTED, and the action is stayed pending completion of arbitration. Any further issues regarding enforceability are delegated to the arbitrator. The Case Management Conference set for October 12, 2026 is vacated. ADR Review is set for April 26, 2027 at 9 AM. Moving Party shall give notice of all the above.
2	Harris vs. Planned Parenthood Orange and San Bernardino Counties 2023-01350613	1. Motion to Compel Deposition (Oral or Written) 2. Motion to Compel Further Responses to Form Interrogatories 3. Motion to Compel Further Responses to Form Interrogatories 4. Motion to Compel Production

	Plaintiff Kufrrshawnda Harris' Motion to Compel the Deposition of Defendant's Employees, Nancy Espinoza and Denise Garcia; Motion to Compel Further Responses to Plaintiff's Request for Supplemental Responses to Requests for Production of Documents; Motion to Compel Further Responses to Plaintiff's Request for Supplemental Responses to General Form Interrogatories; and Motion to Compel Further Responses to Plaintiff's Request for Supplemental Responses to Employment Form Interrogatories are DENIED as Moot, as Defendant Planned Parenthood Orange and San Bernardino Counties has provided substantive supplemental responses to the disputed written discovery requests and made their employees available for depositions after the filing of the motions. (See Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409 [court's discretion where responses served after motion filed.].) The motions are not moot regarding the issue of monetary sanctions. Service of responses after the filing of a motion to compel does not necessarily render a request for monetary sanctions moot. (See Cal. Rules of Court, Rule 3.1348, subd. (a) ["The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed."].) Here, Defendant's failure to timely produce supplemental responses and make its employees available for deposition forced Plaintiff to file these motions. Plaintiff is entitled to recover monetary sanctions to compensate her for the time and resources spent in preparing and filing these motions. Accordingly, Defendant Planned Parenthood Orange and San Bernardino Counties shall pay monetary sanctions in the amount of \$2,510 within 30 days of this ruling.
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		Plaintiff shall provide notice.
3	Whisler vs. General Motors, LLC. 2025-01461222	Motion to Compel Production CCP 871.26 states in relevant part: (a) This section only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20. (b) Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h). (c) Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents: (1) The plaintiff. (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. This deposition shall be limited to the topics listed in subdivision (i). (d) Within 90 days after filing of the answer or other responsive pleading, all parties shall schedule a mediation to occur within 150 days after filing of the answer or other responsive pleading with a court-appointed or private mediator. ... (e) Except as provided in subdivisions (b) and (c), all other discovery shall be stayed until mediation is concluded. If the case is not resolved at the conclusion of mediation, standard discovery procedures prescribed in Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedures shall apply, including an additional deposition of the plaintiff and the defendant and, if the

		defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. (f) The plaintiff shall provide the following documents to all other parties pursuant to the timeline set forth in subdivision (b): (1) Sales or lease agreement. (2) Copy of current registration. (3) Any finance information, account information, including payment history and estimated payoff amount, and any loan modification agreements. (4) Any repair orders, including to third-party repair facilities or the location of where information relating to repair orders may be found. (5) Documents detailing all underlying claimed incidental damages. (6) Information pertaining to the market value of the motor vehicle that is currently in the consumer's possession. (7) Any written, pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request. (g) The plaintiff shall provide the following information to all other parties pursuant to the timelines set forth in subdivision (b): (1) Mileage of the motor vehicle as of the date of the disclosure described in subdivision (b). (2) Primary driver or drivers of the motor vehicle. (3) If the motor vehicle is primarily used for a business purpose, whether more than five vehicles are registered to the business. (4) Whether the plaintiff is still in possession of the motor vehicle. (5) Address where the motor vehicle is located. (6) Whether the plaintiff is an active or prior member of the Armed Forces. (7) Whether the motor vehicle has been involved in a collision or accidents reported to insurance prior to the nonconformity, and if so, the approximate date of the collision, the name of the insurance company, and any applicable claim number.
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		(8) Whether the motor vehicle has any aftermarket modifications done after purchase of the motor vehicle, and if so, a list of each modification. (9) Dates and mileages for presentations that are not included in the provided repair orders or the location of where the information may be found. (10) Whether the plaintiff has had any pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request. (11) Any need for an interpreter for purposes of a deposition. ... (j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: (1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b). ... (5) Notwithstanding paragraph (3) of subdivision (o) of Section 6068 of the Business and Professions Code, the court may, in its discretion, require an attorney who is sanctioned pursuant to this subdivision to report the sanction, in writing, to the State Bar of California within 30 days of the imposition of the sanction. ... Moving Party's (MP) evidence shows that along with its demurrer filed on 5-27-25, MP also sent a letter to plaintiff's counsel advising that this action was subject to these initial lemon law disclosure statutes. (Rodriguez Decl., Para. 4, Ex. A.) Responding Party (RP) plaintiff does not
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		dispute that this action is subject to CCP 871.26. MP's evidence also shows that while it appeared in this action on 5-27-25, as of the filing of the motion on 3-13-26, plaintiff had not provided the required disclosures. (Rodriguez Decl., Paras. 3-6.) In response, RP plaintiff contends the motion is moot because he has produced responsive documents and the delay was not willful. Both contentions are unsupported. RP attorney's declaration states in relevant part: 5. On July 29, 2026, Plaintiff served his initial disclosures and the responsive documents on GM. Attached hereto as Exhibit A is a true and correct copy of the email correspondence transmitting Plaintiff's production to GM's counsel. Attached hereto as Exhibit B is a true and correct copy of the documents Plaintiff produced to GM. 6. The delay in serving Plaintiff's disclosures was not intentional. Upon determining that the initial disclosures remained outstanding, Plaintiff's counsel promptly reviewed the file, gathered the available responsive materials, and served Plaintiff's initial disclosures and responsive documents before the hearing. 7. Plaintiff has produced the responsive documents presently within his possession, custody, or control and is not intentionally withholding any responsive documents from GM. (Smith Decl. in support of Opp, Paras. 5-7.) RP's Opp shows that the only document produced was a Carfax report for the subject vehicle. (RP Ex. B.) There is no evidence that RP has produced any of the other documents required by CCP 871.26(f), set forth above, nor any explanation why these other required documents were not produced. RP attorney avers that plaintiff "has produced the responsive documents presently within his possession, custody, or control" (Smith
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		Decl., Para. 7), but this conclusory assertion appears insufficient. RP provides no explanation why other documents required by CCP 871.26(f) were not, or cannot, be produced. For example, even if RP does not have payment records (CCP 871.26(f)(3)) in his personal possession, there is no explanation why he could not obtain them from his financial institution. Similarly, registration records (CCP 871.26(f)(2)) can be obtained from the DMV. (See <i>Regency Health Services, Inc. v. Superior Court</i> (1998) 64 Cal.App.4th 1496, 1504 [in the regular discovery context, “a party has a general duty to conduct a reasonable investigation to obtain responsive information ... and must furnish information from all sources under his or her control”].) Finally, RP has not provided any evidence that he provided the information required by CCP 871.26(g) at all. Accordingly, RP fails to show that the motion is moot, so the Court grants the motion. RP’s Opp also fails to show “good cause” why statutory penalties should not be imposed. (CCP 871.26(j)). This action has been pending for well over a year, MP requested production of the documents in May 2025, and the instant motion was filed in March 2026. However, RP apparently made no effort to comply with his statutory disclosure obligations until shortly before the Opposition was due, and even then, only produced a single document. Accordingly, the Court also imposes the \$1,500 sanctions required by CCP 871.26(j). RULING: Defendant General Motors LLC’s motion to compel initial disclosures, and for monetary sanctions, is GRANTED. (Code Civ. Proc., § 871.26.) Plaintiff Clinton Whisler shall produce the documents and information required by Code Civ. Proc., § 871.26, subds. (f) and (g), to moving party within 10 days.
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		Monetary sanctions are imposed against plaintiff Clinton Whisler in the amount of \$1,500.00, payable to counsel for moving party within 15 business days. (Code Civ. Proc., § 871.26, subd. (j)(1).) Moving party shall give notice.
4	RV 2020, LLC vs. Peterson 2026-01553542	Motion – Other (to Compel Judicial Reference and Stay Litigation) Defendants RV RES I, LLC and George Peterson’s motion for judicial reference is GRANTED in part and DENIED in part. (Code Civ. Proc., § 638 [authorizing motion].) Defendants’ objection no. 3 to the Sussman Declaration is SUSTAINED (improper opinion). Defendants’ remaining objections are OVERRULED. Both parties’ requests for judicial notice are GRANTED. (Evid. Code 452, subd. (d) [court records].) With the exception of the stipulation and order filed on 8-6-25 in Case No. 2025-01487927, judicial notice is limited to the fact that the documents were filed, but not of the truth of their contents. (In re Vicks (2013) 56 Cal.4th 274, 314 [“while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files;” emphasis in original; internal citation omitted]; see also Williams v. Wraxall (1995) 33 Cal.App.4th 120, 130, FN 7 [judicial notice of truth of documents in court files ordinarily limited to orders, statements of decision, and judgments].) The motion is GRANTED as to defendant RV RES I, LLC. The court finds that there is an Operating Agreement between the parties requiring disputes be resolved by judicial reference, and that plaintiff’s claims in this action involve this defendant’s performance

	under the Operating Agreement. (Peterson Decl., ¶ 3, Ex. 1 [Complaint in Case No. 2025-01487927], Ex. D thereto [RV DEV LLC Operating Agreement] at § 23.1, requiring resolution of “any controversy or dispute between the parties arising out of this Agreement” to be “heard by a referee under the provisions of the California Code of Civil Procedure, Section 638 – 645.1”]; Rice v. Downs (2016) 248 Cal.App.4th 175, 186–187 [agreements requiring arbitration of “any dispute,” “controversy,” or “claim” “arising under” or “arising out of” the agreement encompass disputes “relating to the interpretation and performance of the agreement;” emphasis added]; see also O'Donoghue v. Superior Court (2013) 219 Cal.App.4th 245, 261 [while there are differences between arbitration and judicial reference, arbitration cases are “informative”].) Accordingly, plaintiff is ordered to resolve its claims against defendant RV RES I, LLC through judicial reference, pursuant to the parties’ agreement. The motion is DENIED as to defendant Peterson, who did not execute the Operating Agreement in his individual capacity, and who has not shown that he may enforce the judicial reference provision as a nonsignatory. (Filippo Industries, Inc. v. Sun Ins. Co. of New York (1999) 74 Cal.App.4th 1429, 1442 [“Where the signature as agent and not as a principal appears on the face of the contract, the principal is liable and not the agent”]; Cohen v. TNP 2008 Participating Notes Program, LLC (2019) 31 Cal.App.5th 840, 866 [the “general rule” is that “a representative who signs a contract as a corporate officer or agent is not a party to the contract in his or her personal capacity”]; Benaroya v. Willis (2018) 23 Cal.App.5th 462, 469 [grounds for nonsignatory enforcement in the arbitration context].) The Court orders this matter stayed pending completion of judicial reference. This action does not involve identical parties and claims as Case No. 2025-01487927, so as to support a demurrer based on another action pending.
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		(Code Civ. Proc., § 430.10, subd. (c); Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 789.) Nonetheless, the Court exercises its inherent authority to stay the remainder of this action pending completion of the judicial reference, in order to avoid the possibility of conflicting rulings, and perhaps foster judicial economy. (Code Civ. Proc., § 187 [court's inherent authority]; Adams v. Paul (1995) 11 Cal.4th 583, 593 [court may order stay to avoid risk of inconsistent pleadings or judgments].) The Case Management Conference scheduled for 10-12-26 is VACATED. The Court sets a Status Conference re: Judicial Reference for June 7, 2027 at 9 AM. Moving parties shall give notice of all the above.
5	Lopez vs. Gyutan Tsukasa USA, Inc. 2021-01193736	Motion to Compel Deposition (Oral or Written) When a PMK designee fails to come prepared to testify on the noticed topics, the deposing party is entitled to relief. In Maldonado v. Superior Court, (2002) 94 Cal.App.4th 1390, the court held that ICG should have been ordered to bring their witnesses back to the depositions with the documents requested and with proof that the witnesses had undertaken some effort to familiarize themselves with the areas of their supposed knowledge. The court found there was no basis for denying the motion to compel in that circumstance, and the trial court's denial of the motion was error. Maldonado, id. The Maldonado court further explained that when a request for documents is made in the deposition notice, the deposition witness or someone in authority is expected to make an

		inquiry of everyone who might be holding responsive documents or everyone who knows where such documents might be held. This principle extends to the witness's substantive preparation: a PMK designee who simply claims unfamiliarity with the noticed issues has not satisfied the organization's statutory obligation under Ca. Civ. Pro. section 2025.230. The combined effect of section 2025.230 and the Maldonado holding is that an organization cannot discharge its PMK obligation by producing a witness who merely holds a title but lacks actual knowledge of or preparation on the noticed topics. Where the first PMK testified that he was not familiar with the noticed issues, the deposing party has a strong basis to move to compel a further deposition, and the court will likely grant that motion and order the organization to produce a properly prepared designee. The motion to compel further deposition responses is governed by Code of Civil Procedure section 2025.480, and must be brought within 60 days of the completion of the deposition record. <i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316. The Yuriko Shikai declaration indicates that "during the course of the deposition, Mr. Abe confirmed that he had never seen the Notice (Exh. F at 131:5-19), and was not the PMQ on various matters for examination referenced in the Amended Notice of Deposition (Exh. F at 132:5 – 144:19). Because Mr. Abe and his attorney, Mr. Szymanski, had to leave for the deposition by 4:00 pm, the Deposition of Gyutan's PMQ was not concluded and it was agreed that it would be continued to another day. (Exh. F at 144:20 – 146:2.)" In opposition to this motion, the declaration of David Szymanski, attorney for Responding Party, states: "In my opinion, the motion lacks substantial justification because the transcript demonstrates that the witness answered questions within his knowledge and repeatedly explained when he lacked personal knowledge regarding the alleged accident."
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		(See Szymanski declaration, paragraph 8.) But the areas of inquiry for the PMK were not limited to where the accident occurred. It also included topics related to Mitsuwa's tender of defense and indemnity, under policies related to the accident. See Amended notice of deposition, topics 1-4. Further, it appears that the deposition ended before it was completed. [“MS. SHIKAI: So it looks like since Mr. David Szymanski had asked for the deposition to finish by 4:00 and we haven't finished the deposition; we will be continuing this deposition.”] Defendant Mitsuwa Corporation dba Mitsuwa Marketplace's motion to compel defendant Gyutan Tsukasa USA, Inc.'s PMK for deposition is GRANTED. The deposition shall take place as follows: Date: August 14, 2026 Time: 10:00 a.m. Place: Zoom The date, place or time of the deposition may be modified upon written stipulation by the parties only. Defendant Mitsuwa's request for judicial noticed is granted. Mitsuwa to give notice.
6	Chemi vs. Baraca Remodeling, Inc. 2025-01467851	1. Motion for Leave to File Amended Complaint 2. Motion to Dismiss Plaintiffs' Motion for Leave to File First Amended Complaint Plaintiffs Maricel Chemi and Gabriel Szelechtman's Motion for Leave to File a First Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); Atkinson v. Elk Corp (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; Howard v. County of San Diego (2010) 184

		Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Defendants fail to establish any prejudice that would result from permitting the filing of the proposed First Amended Complaint. All Defendants argue is that the declaration in support of Plaintiffs' motion lacks sufficient detail to assess whether Plaintiffs have been reasonably diligent in seeking amendment. This case is in its early stages and no trial date has even been set at this point. Granting leave to amend at this stage will not prejudice Defendants to the point that denial of leave to amend can be justified, even if Plaintiffs could have been more prompt in submitting the First Amended Complaint for filing. Plaintiffs shall separately file and serve the proposed First Amended Complaint within 5 days of this ruling. Separate filing of the proposed First Amended Complaint is required to ensure it is properly indexed in the Court's electronic filing system. Defendants' Motion to Dismiss Defendants Baraca Remodeling, Inc., Tamir Didi, and Ronen Simonpur's Motion to Dismiss is DENIED. Defendants seek dismissal of the fourth and fifth causes of action pursuant to Code Civ. Proc. §581, subd. (f)(2) on the ground that a demurrer was sustained as to these causes of action with leave to amend and Plaintiff failed to timely file a First Amended Complaint addressing the legal deficiencies in these causes of action. Code Civ. Proc. §581, subd. (f)(2) provides that the "court may dismiss the complaint ... after a demurrer to the complaint is sustained with leave to amend [and] the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal" As relief under this section is discretionary, the Court DENIES the motion to dismiss in
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		light of the foregoing order granting Plaintiffs leave to file a First Amended Complaint. Plaintiffs shall provide notice of this ruling.
7	Rodriguez vs. Super Antojitos Don Chepe Corp 2025-01521776	Demurrer to Amended Complaint Defendants Jose De Jesus Lopez, Jose Eduardo Lopez aka Eduardo Lopez, and Claudia Lambaren's demurrer to plaintiff Julio C. Pacheco Rodriguez' First Amended Complaint [FAC] is OVERRULED. (Code Civ. Proc., § 430.10.) The Court finds that moving party has satisfied the meet and confer requirements for demurrers. (Code Civ. Proc., § 430.41, subd. (a)(3)(B); Thakur Decl., ¶¶ 2-4, Ex. A [requesting "availability to telephonically meet and confer"], Ex. B [same].) The FAC sufficiently alleges liability on the part of these moving parties pursuant to Labor Code, § 558.1. (FAC, ¶¶ 3-5 [alleging each moving defendant is an "owner, director, officer, and/or a managing agent" of the entity defendant], ¶ 13 [alleging "At all relevant times, Defendants Jose, Eduardo, and Lambaren in their individual capacities as an owner, director, officer, and/or a managing agent of SADCC supervised the Plaintiff and had authority over and made decisions about the Plaintiff's work schedule (e.g., when and how many hours a day and week the Plaintiff worked), Plaintiff's daily job duties, Plaintiff's working conditions (e.g., employee conduct rules, dress code, overtime, rest and meal breaks), Plaintiff's pay rate, and payment of the Plaintiff's wages," and "controlled and/or maintained the Plaintiff's employment and payroll records"].) Moving parties contend that more is required at the pleading stage, but largely rely on nonbinding federal authorities. (United Firefighters of Los Angeles City v. City of Los Angeles (1989) 210 Cal.App.3d 1095, 1115

		["a decision of a federal district court has no precedential value in this court; at best, it is persuasive authority only"].) Usher v. White (2021) 64 Cal.App.5th 883, was not a pleading case, and did not hold that a plaintiff must allege facts at the pleading stage showing an individual defendant was "personally involved" as moving parties contend; rather, determining individual liability under Labor Code, § 558.1 "requires an examination of the particular facts in light of the conduct, or lack thereof, attributable to" the individual defendant. (Usher v. White, supra at 897.) In any event, facts showing personal involvement are alleged. (FAC, ¶ 13.) Moving parties' other arguments attack only portions of the FAC, or specific allegations, without showing how the challenged causes of action fail entirely. (Quelimane Co., Inc. v. Stewart Title Guar. Co. (1998) 19 Cal.4th 26, 38-39 [a complaint is good against a general demurrer so long as it states a valid cause of action on any theory]; PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682 ["demurrer does not lie to a portion of a cause of action"].) Moving parties shall file an Answer to the FAC within 15 days. Plaintiff shall give notice.
8	Kell vs. Wilson 2023-01338314	Motion to Be Relieved as Counsel of Record Attorney Larsen E. Ensberg of Ensberg Law Group, APLC's Motion to be Relieved as Counsel of Record for Plaintiff Darrell William Lawrence is GRANTED. Service on Plaintiff and counsel of the other Parties was proper, and all required forms were filed pursuant to California Rules of Court, Rule 3.1362.

		Accordingly, Larsen E. Ensberg and Ensberg Law Group, APLC are relieved as counsel of record for Plaintiff Darrell William Lawrence. The order will take effect once moving attorney files proof of service of this Order on Plaintiff Darrell William Lawrence. Moving attorney to provide notice.
9	Davinci vs. Ford Motor Company 2024-01386245	Motion to Compel Deposition (Oral or Written) Defendant Ford Motor Company's Motion to Compel Plaintiff's Deposition is GRANTED. Since May 2024, Ford has noticed Plaintiff's deposition seven times. Ford asked for alternative dates on each occasion and Plaintiff failed to appear for the deposition on each occasion. Only after the instant motion was filed did Plaintiff agree to appear at her deposition on August 27, 2026. In opposition, Plaintiff fails to provide a legitimate justification for her repeated delays in scheduling her deposition. Accordingly, the motion to compel Plaintiff's deposition is GRANTED. (Code Civ. Proc., § 2025.450(a).) Plaintiff's deposition shall take place on August 27, 2026, as agreed upon by the parties, or no later than 30 days from the date of this hearing. The Court finds no substantial justification for Plaintiff's failure to appear for deposition or provide alternate dates for the deposition until after the motion was filed. Therefore, sanctions are justified. The Court awards sanctions in the amount of \$560.00 in favor of Ford and against Plaintiff and her counsel or record. (Code Civ. Proc., § 2025.450(g).) Sanctions to be paid within 30 days. Plaintiff's request for sanctions is DENIED.

		Moving Party shall give notice.
11	Stump vs. Viking Security Services Inc. 2023-01326370	Motion for Summary Judgment and/or Adjudication When a defendant seeks summary judgment, it bears the burden of proof by a preponderance of the evidence to establish that an action has no merit, that plaintiff cannot prove an element or some elements of a cause of action, or that a complete defense is established as a matter of law entitling it to judgment. C.C.P. § 437c (p) (2), and Hunter v. Pacific Mechanical Corp. (1995) 37 Cal.App.4th 1282, 1287. If the moving party cannot meet its burden, then the opposing party has no burden to oppose the motion by submitting evidence demonstrating that triable issues of fact exist in the case. Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840. But if the moving party carries its initial burden, then the party opposing the motion must produce admissible evidence to show that a triable issue of fact, or issues of fact, exists. C.C.P. § 437c (p) (2), and Green v. Ralee Engineering Co. (1998) 19 Cal.4th 66, 72. The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland (2001) 92 Cal.App.4th 1247, 1260.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (McCabe v. American Honda Motor Corp. (2002) 100 Cal.App.4th 1111, 1119.)

		Here, if Moving Party is successful in meeting its initial burden, the burden then shifts to plaintiff to produce evidence to raise a triable issue of fact as to why the Moving Party should be liable for plaintiff's injuries. To meet its burden, AJP will have to demonstrate the absence of a triable issue of material fact on the key elements of duty, assumed duty, and negligent hiring. The analysis turns primarily on whether the AJP voluntarily assumed a duty to protect patrons by hiring security, and whether it exercised reasonable care in doing so. Merits Here, the starting point is that a restaurant owner is generally not vicariously liable for the torts of an independent contractor. A person who hires an independent contractor to perform work is generally not liable to third parties for injuries resulting from that work. <i>Privette v. Superior Court</i> (1993) 5 Cal.4th 689. This general rule of hirer nonliability provides the foundation for a restaurant owner's summary judgment motion. The most significant obstacle to summary judgment for AJP is the doctrine of assumed duty. Once a restaurant voluntarily hires a security guard to protect its patrons, it assumes a duty to protect those patrons from criminal attack, and the issue of foreseeability becomes irrelevant. <i>The Irvine Co. LLC v. Superior Court</i> (2023) 96 Cal.App.5th 858. To successfully move for summary judgment, the restaurant owner must negate at least one essential element of the patron's claim. The key showings are: 1. No breach of the assumed duty — the security team acted reasonably under the circumstances 2. No causation — the security team's conduct was not a substantial factor in causing the patron's injuries 3. The assault occurred outside the scope of the assumed duty (e.g., off the restaurant's premises)
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		A restaurant owner may also face direct liability for negligent hiring or supervision of the independent contractor security firm. The employer of a security guard may be liable for the guard's assaults if the employer negligently hired the guard or negligently placed the guard in a position to commit foreseeable harmful acts. <i>Hawkins v. Wilton</i> (2006) 144 Cal.App.4th 936. To prevail on summary judgment against this theory, the restaurant owner must show there was no evidence of prior unfitness or dangerous propensity known or knowable to the owner, and that the owner exercised reasonable care in selecting the security contractor. The restaurant owner's knowledge of prior incidents of excessive force by the same security company is a critical factor. A proprietor may be held liable for its own negligence in retaining a guard whose dangerous propensities were known. <i>Delgado v. Trax Bar & Grill</i> (2005) 36 Cal.4th 224. Here plaintiff has offered evidence that AJP had once retained Viking's services but terminated them. Viking was then rehired, but AJP at the time it rehired Viking, knew that Viking previously, on more than 10 occasions, physically grabbed patrons. (See AMFs 30, 32, 34; Ex. 1, Petrossian Depo. 53:16-19, 54:5-11, 54:24-55:10; Ex. 1, Petrossian Depo. 57:6-57:8; Ex. 1, Petrossian Depo. 57:9 18; Ex. 1, Petrossian Depo. 19:12-21; Petrossian Decl. ¶ 15.) Where the restaurant knew of prior incidents of excessive force by the same security company — even if those incidents occurred a couple of years earlier — that knowledge goes directly to the foreseeability of harm and the reasonableness of continuing to retain that company. Prior incidents of violence on premises give rise to heightened foreseeability. <i>Lopez v. Baca</i> (2002) 98 Cal.App.4th 1008. The employer's awareness of a contractor's dangerous propensities triggers a duty to act, and failure to terminate or supervise the security company in light of that knowledge
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	supports a finding of negligent retention. The use of excessive force by a security guard is unquestionably engendered by the guard's employment, as courts have found employers vicariously liable where an employee security guard's use of force was for the purpose of performing his employment duties. Yamaguchi v. Harnsmut (2003) 106 Cal.App.4th 472. In addition, Stump has introduced evidence that the actions of Viking on the night of the incident, were taken at the direction of the server, Jordyn Sparks. (AMF #47.; Ex. 1, Petrossian Depo. 24:11-25:19 (Sparks opened a tab for the table); 26:2-4 (tab was still open when incident occurred); 26:5-17 (server's direction to security); 26:18-27:2 (credit card on file); 28:10-14 (tab still open when incident occurred); Ex. 2, Koch Depo. 31:5-12; 85:16-86:23 (security received the information from a server/La Vida server Jordyn Sparks).) That evidence creates a triable issue of fact with regard to whether AJP may be liable for Stump's injuries. First, the instruction itself may eliminate the independent contractor defense. When an employee of the restaurant directs the independent contractor security team to take specific action, this creates an issue of control that undermines the independent contractor relationship. The hirer of an independent contractor is generally not liable for the contractor's negligent torts except where the hirer exercised control over them. Johnson v. Ralphs Grocery Co. (2012) 204 Cal.App.4th1097. A server's direct instruction to detain a specific customer for a specific reason could constitute sufficient control to trigger liability. Second, the restaurant could face vicarious liability under respondeat superior if the server was acting within the scope of her employment when she gave the instruction. Employers can be vicariously liable for employee conduct that occurs within the scope of employment. Borg-Warner Protective Services Corp. v. Superior Court (1999) 75 Cal.App.4th 1203. A server
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	instructing security to address an unpaid bill would likely be considered within the scope of her employment duties, as she would be acting to protect the restaurant's financial interests. The restaurant would then be liable for any false imprisonment or excessive force that resulted from her instruction, even if carried out by independent contractors. Finally, even if the security team qualifies as an independent contractor, the restaurant's voluntary assumption of a duty to provide security creates obligations to patrons. The restaurant assumed a duty when it hired security guards, and this duty extends to ensuring that security functions are performed reasonably. <i>Delgado v. Trax Bay & Grill</i>, supra. If the server's instruction led to an unreasonable detention or injury, the restaurant could be liable for negligently directing or supervising the security undertaking. In sum, there are triable issues of fact as to whether AJP's actions in hiring and retaining Viking were reasonable. There are also triable issues of fact as to whether AJP may be liable under vicarious liability or a respondeat superior theory for the acts of its server. RULING: Defendant AJP Mexican Bar LLC dba La Vida Cantina's motion for summary judgment as to the complaint of Johathan Stump is DENIED. AJP met its initial burden of showing Stump could not prevail on his claim for negligence, but Stump has met his now shifted burden raising a triable issue of fact. See C.C.P. § 437c (p) (2), and <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287. Specifically, there are triable issues of fact as to UMFs 9, 12, 15, 20 and Stump's additional material facts 24, 30, 32, 34, 40, 41, 44, 45, 46, 47, 48, 49, 52, 53, 54, 55, 56, 57, 60.
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		Stump's objections to the declaration of Alex Petrossian are overruled. AJP Mexican Bar's objections to plaintiff's evidence are overruled. AJP Mexican Bar LLC's request for judicial notice is granted. Moving Party shall give notice.
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